

1 ENGROSSED HOUSE  
2 BILL NO. 3403

By: Patzkowsky and Alonso-  
Sandoval of the House

3 and

4 Stewart of the Senate  
5  
6

7 An Act relating to environment and natural resources;  
8 creating the Oklahoma Biosolids Land Application  
9 Research Pilot Program Act; requiring the Department  
10 of Environmental Quality to administer Pilot Program  
11 in cooperation with Oklahoma State University;  
12 providing for expiration of the Pilot Program;  
13 listing requirements for the Pilot Program; requiring  
14 submission of certain annual report; listing  
15 requirements for annual report; authorizing  
16 partnerships with private landowners; limiting  
17 liability; making certain exemption; requiring  
18 certain documentation be kept; authorizing funding;  
19 requiring deposit of funds in certain revolving fund;  
20 creating the Oklahoma Biosolids Land Application  
21 Research Pilot Program Act Revolving Fund; describing  
22 fund; providing for content of fund; providing for  
23 deposits and expenditures; providing for  
24 codification; and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified  
20 in the Oklahoma Statutes as Section 2-10-1120 of Title 27A, unless  
21 there is created a duplication in numbering, reads as follows:

22 This act shall be known and may be cited as the "Oklahoma  
23 Biosolids Land Application Research Pilot Program Act".  
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SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-10-1121 of Title 27A, unless there is created a duplication in numbering, reads as follows:

A. There is hereby created at Oklahoma State University (OSU) the Oklahoma Biosolids Land Application Research "Pilot Program". The Pilot Program shall be administered by the Department of Environmental Quality (DEQ) in cooperation with the Division of Agricultural Sciences and Natural Resources in coordination with the OSU College of Engineering, Architecture and Technology, the OSU Department of Environmental Science, and the Cooperative Extension Service. The Pilot Program shall operate for an initial five-year period.

B. The Pilot Program shall:

1. Identify and approve study plots on agricultural lands, including, but not limited to, OSU-owned research farms and, as appropriate, cooperating private farms;

2. Develop biosolids application protocols, including:

- a. nutrient content evaluation,
- b. pathogen and contaminant screening (including perfluoroalkyl and polyfluoroalkyl substances (PFAS), heavy metals, and pharmaceuticals),
- c. application rates, and
- d. soil amendment practices;

1        3. Conduct agronomic research, including crop yield impacts,  
2 soil health changes, and nutrient cycling;

3        4. Conduct environmental impact studies, including:

4            a. surface and groundwater monitoring,

5            b. soil residual testing, and

6            c. air quality, odor, and vector considerations;

7        5. Assess regulatory models, including best management  
8 practices, permitting options, and compliance structures suitable  
9 for Oklahoma;

10       6. Coordinate with the DEQ and may utilize biosolids supplied  
11 by Oklahoma municipal wastewater treatment facilities that meet DEQ  
12 and Environmental Protection Agency (EPA) standards; and

13       7. Provide outreach and education to Oklahoma farmers,  
14 ranchers, conservation districts, and municipalities through OSU  
15 Extension programs.

16       C. A report shall be submitted annually to the Governor, the  
17 President Pro Tempore of the Oklahoma State Senate, the Speaker of  
18 the Oklahoma House of Representatives, and the DEQ regarding  
19 findings, data, and recommendations. Annual reports shall be  
20 submitted no later than December 1 and include:

21           1. Agronomic outcomes;

22           2. Environmental monitoring results;

23           3. Risk assessments;

24           4. Recommendations for statewide standards or rules; and

1        5. Cost-benefit analysis for farmers and municipalities.

2        D. OSU may partner with private agricultural landowners who  
3 volunteer to participate in research trials. OSU shall secure  
4 written consent, ensure DEQ compliance, and provide guidelines for  
5 application, monitoring, and sampling. No landowner shall be held  
6 liable for environmental impacts resulting solely from adherence to  
7 OSU protocols developed under the Pilot Program.

8        E. Biosolids applied under the Pilot Program shall be exempt  
9 from state permitting otherwise required under environmental or land  
10 application rules, only to the extent necessary to conduct  
11 controlled research, and only when research protocols meet or exceed  
12 DEQ and EPA requirements. OSU shall coordinate with DEQ to ensure  
13 proper recordkeeping and transport documentation.

14        F. The Pilot Program may be funded by legislative  
15 appropriations, federal research grants, municipal contributions,  
16 private or industry research partnerships, or in-kind contributions  
17 of biosolids or laboratory services. Funds for administering the  
18 Pilot Program shall be deposited into the Oklahoma Biosolids Land  
19 Application Research Pilot Program Act Revolving Fund created in  
20 Section 3 of this act.

21        SECTION 3.        NEW LAW        A new section of law to be codified  
22 in the Oklahoma Statutes as Section 2-10-1122 of Title 27A, unless  
23 there is created a duplication in numbering, reads as follows:

1       There is hereby created in the State Treasury a revolving fund  
2 for the Department of Environmental Quality to be designated the  
3 "Oklahoma Biosolids Land Application Research Pilot Program Act  
4 Revolving Fund". The fund shall be a continuing fund, not subject  
5 to fiscal year limitations, and shall consist of all monies received  
6 by the Department from appropriations, apportionments, donations,  
7 and federal grants received for the purpose of conducting the  
8 provisions of the Oklahoma Biosolids Land Application Research Pilot  
9 Program created pursuant to Section 2 of this act. All monies  
10 accruing to the credit of the fund are hereby appropriated and may  
11 be budgeted and expended by the Department for the purpose provided  
12 for in this section. Expenditures from the fund shall be made upon  
13 warrants issued by the State Treasurer against claims filed as  
14 prescribed by law with the Director of the Office of Management and  
15 Enterprise Services for approval and payment.

16       SECTION 4. This act shall become effective November 1, 2026.  
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1 Passed the House of Representatives the 11th day of March, 2026.

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3 \_\_\_\_\_  
4 Presiding Officer of the House  
5 of Representatives

6 Passed the Senate the \_\_\_\_\_ day of \_\_\_\_\_, 2026.

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9 Presiding Officer of the Senate